

NATIONAL COMMISSIONS SC ST BC

EVOLUTION FROM SPECIAL OFFICER → COMPOSITION, APPOINTMENT, TENURE AND → COMMON DUTIES AND COMPLAINT-TO-POLICY → CIVIL-COURT POWERS AND REMEDIAL → REPORTS, ACTION MEMORANDA AND → NCSC AND NCST: COMMON

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

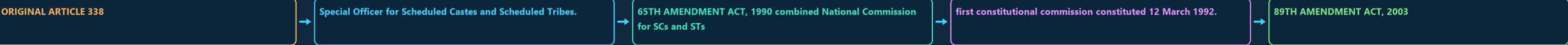
CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 EVOLUTION FROM SPECIAL OFFICER TO THREE COMMISSIONS

EVOLUTION FROM SPECIAL OFFICER TO THREE COMMISSIONS ORIGINAL ARTICLE 338 SPECIAL OFFICER FOR SCHEDULED CASTES AND SCHEDULED TRIBES. 65TH AMENDMENT ACT, 1990 COMBINED NATIONAL COMMISSION FOR SCS FIRST CONSTITUTIONAL COMMISSION CONSTITUTED 12 MARCH 1992.

89TH AMENDMENT ACT, 2003 ARTICLE 338 RETAINED FOR NCSC + ARTICLE 338A INSERTED SEPARATE COMMISSIONS OPERATIONAL 19 FEBRUARY 2004.



CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ORIGINAL ARTICLE 338 - Special Officer for Scheduled Castes and Scheduled Tribes. 65TH AMENDMENT ACT, 1990 combined National Commission for SCs and STs - first constitutional commission constituted 12 March 1992.	89TH AMENDMENT ACT, 2003 - Article 338 retained for NCSC + Article 338A inserted for NCST - separate commissions operational 19 February 2004. - Indra Sawhney (1992) → permanent backward-class body.	- NCBC Act, 1993 → statutory NCBC. 102ND AMENDMENT ACT, 2018 - Article 338B + Article 342A + Article 366(26C) - constitutional NCBC operational 15 August 2018.	105TH AMENDMENT ACT, 2021 - State/UT own-list competence made explicit from 15 September 2021.

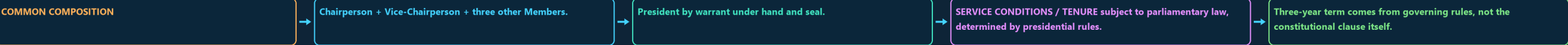
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: State/UT own-list competence made explicit from 15 September 2021.

01

STAGE 01 COMPOSITION, APPOINTMENT, TENURE AND PROCEDURE

COMPOSITION, APPOINTMENT, TENURE AND PROCEDURE COMMON COMPOSITION CHAIRPERSON + VICE-CHAIRPERSON + THREE OTHER MEMBERS. PRESIDENT BY WARRANT UNDER HAND AND SEAL. SERVICE CONDITIONS TENURE SUBJECT TO PARLIAMENTARY LAW, DETERMINED BY PRESIDENTIAL RULES.

THREE-YEAR TERM COMES FROM GOVERNING RULES, NOT THE CONSTITUTIONAL PROCEDURE EACH COMMISSION MAY REGULATE ITS OWN PROCEDURE.



CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- COMMON COMPOSITION - Chairperson + Vice-Chairperson + three other Members.	- President by warrant under hand and seal. - SERVICE CONDITIONS / TENURE subject to parliamentary law, determined by presidential rules.	- Three-year term comes from governing rules, not the constitutional clause itself. - PROCEDURE each Commission may regulate its own procedure.	- CONSTITUTIONAL STATUS entrenches existence, mandate and report route. - LIMIT constitutional status does not automatically guarantee timely appointments, regional reach, staff capacity, data quality or acceptance of

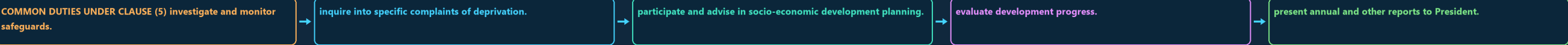
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT constitutional status does not automatically guarantee timely appointments, regional reach, staff capacity, data quality or acceptance of recommendations.

02

STAGE 02 COMMON DUTIES AND COMPLAINT-TO-POLICY CYCLE

COMMON DUTIES AND COMPLAINT-TO-POLICY CYCLE COMMON DUTIES UNDER CLAUSE (5) INVESTIGATE AND MONITOR SAFEGUARDS. INQUIRE INTO SPECIFIC COMPLAINTS OF DEPRIVATION. PARTICIPATE AND ADVISE IN SOCIO-ECONOMIC DEVELOPMENT PLANNING. EVALUATE DEVELOPMENT PROGRESS.

PRESENT ANNUAL AND OTHER REPORTS TO PRESIDENT. RECOMMEND MEASURES FOR EFFECTIVE IMPLEMENTATION AND PROTECTION. PERFORM OTHER SPECIFIED FUNCTIONS.



CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- COMMON DUTIES UNDER CLAUSE (5) investigate and monitor safeguards. - inquire into specific complaints of deprivation. - participate and advise in socio-economic development planning.	- evaluate development progress. - present annual and other reports to President. - recommend measures for effective implementation and protection.	- perform other specified functions. - EVIDENCE CYCLE safeguard → implementation record → complaint/monitoring - inquiry → finding → recommendation → government response	- legislative scrutiny → corrective law, policy or administration. - Commission scrutiny supports remedies; it does not replace police, tribunal or court.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Commission scrutiny supports remedies; it does not replace police, tribunal or court.

03

STAGE 03 CIVIL-COURT POWERS AND REMEDIAL LIMITS

03

participate and advise in socio-economic development planning.

recommend measures for effective implementation and protection.

inquiry → finding → recommendation → government response

court.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Commission scrutiny supports remedies; it does not replace police, tribunal or court.

STAGE 03

CIVIL-COURT POWERS AND REMEDIAL LIMITS

CIVIL-COURT POWERS AND REMEDIAL LIMITS

IN INVESTIGATION OR INQUIRY SUMMON AND ENFORCE ATTENDANCE

EXAMINE ON OATH REQUIRE DISCOVERY/PRODUCTION

RECEIVE AFFIDAVIT EVIDENCE REQUISITION PUBLIC RECORDS

ISSUE COMMISSIONS PRESCRIBED ADDITIONAL MATTERS.

LIMIT CIVIL-COURT POWERS GATHER EVIDENCE; THEY DO NOT CREATE

REMEDY ROUTE FINDING/RECOMMENDATION

COMPETENT EXECUTIVE, LEGISLATURE, POLICE, TRIBUNAL OR COURT.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REMEDY ROUTE finding/recommendation → competent executive, legislature, police, tribunal or court.

04

REPORTS, ACTION MEMORANDA AND CONSULTATION

REPORT ROUTE ANNUAL/OTHER REPORT

PARLIAMENT MEMORANDUM ON ACTION TAKEN AND REJECTED ADVICE.

STATE-RELATED PART

GOVERNOR/STATE GOVERNMENT

STATE LEGISLATURE + MEMORANDUM.

UNION AND STATE GOVERNMENTS SHALL CONSULT THE RELEVANT COMMISSION

LIMIT CONSULTATION IS A CONSTITUTIONAL HEARING/ACCOUNTABILITY DUTY, NOT A

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT consultation is a constitutional hearing/accountability duty, not a veto.

05

NCSC AND NCST

COMMON ENGINE, DISTINCT DOMAINS

ARTICLE 338

SC SAFEGUARDS, UNTOUCHABILITY, REPRESENTATION, SERVICE DISCRIMINATION AND ATROCITY-PREVENTION IMPLEMENTATION.

ARTICLE 338A

ST SAFEGUARDS PLUS TRIBAL LAND, FOREST, MINOR PRODUCE, DISPLACEMENT

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ST safeguards plus tribal land, forest, minor produce, displacement, resources, PESA and shifting-cultivation concerns under specified functions.

06

NCBC CONSTITUTIONALISATION AND SAFEGUARD ROLE

ARTICLE 338B

102ND AMENDMENT, 2018 TRANSFORMED THE 1993 STATUTORY NCBC INTO

COMMON ENGINE MONITOR SAFEGUARDS

DEVELOPMENT ADVICE/EVALUATION REPORTS

SPECIFIED ADDITIONAL FUNCTIONS.

CONSULTATION MAJOR SEBC POLICY MATTERS, SUBJECT TO THE ARTICLE

NCBC ADVICE DOES NOT ITSELF AMEND THE CENTRAL OR

NCBC: ARTICLE 338B

102nd Amendment, 2018 transformed the 1993 statutory NCBC into a constitutional safeguard commission.

COMMON ENGINE monitor safeguards

development advice/evaluation reports

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

NATIONAL COMMISSIONS SC ST BC • TILE 2/4 • same master rows 2813-6047 of 11674 • continues below

CONSTITUTION MAJOR SEBC POLICY MATTERS, SUBJECT TO THE ARTICLE 338B

NCBC ADVICE DOES NOT ITSELF AMEND THE CENTRAL OR

NCBC: ARTICLE 338B

102nd Amendment, 2018 transformed the 1993 statutory NCBC into a constitutional safeguard commission.

COMMON ENGINE monitor safeguards

development advice/evaluation reports

CONSTITUTIONAL BASIS / ARTICLE

- NCBC: ARTICLE 338B
- 102nd Amendment, 2018 transformed the 1993 statutory NCBC into a constitutional safeguard commission.

POWER / PROCEDURE

- COMMON ENGINE monitor safeguards
- development advice/evaluation reports

CHECK / LIMIT

- specified additional functions.
- CONSULTATION major SEBC policy matters, subject to the Article 338B(9) exception for State/UT own-list preparation under Article 342A(3).

FEDERAL / RIGHTS IMPACT

- NCBC advice does not itself amend the Central or a State SEBC list.
- NCBC: ARTICLE 338B

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NCBC advice does not itself amend the Central or a State SEBC list.

07

STAGE 07

SC, ST AND SEBC LIST-AMENDMENT AUTHORITIES

SC, ST AND SEBC LIST-AMENDMENT AUTHORITIES

SCHEDULED CASTES

ARTICLE 341

PRESIDENT SPECIFIES BY PUBLIC NOTIFICATION FOR A STATE/UT

PARLIAMENT LATER INCLUDES OR EXCLUDES BY LAW.

SCHEDULED TRIBES

ARTICLE 342 SAME CONSTITUTIONAL PATTERN; STATE CONSULTATION OCCURS AT

SEBC CENTRAL LIST

CONSTITUTIONAL BASIS / ARTICLE

- SCHEDULED CASTES: ARTICLE 341
- President specifies by public notification for a State/UT
- Parliament later includes or excludes by law.

POWER / PROCEDURE

- SCHEDULED TRIBES: ARTICLE 342 same constitutional pattern; State consultation occurs at initial specification.
- SEBC CENTRAL LIST: ARTICLE 342A(1)-(2)
- President specifies for Central Government purposes

CHECK / LIMIT

- Parliament includes or excludes by law.
- STATE / UT LIST: ARTICLE 342A(3)
- State or UT may by law prepare and maintain its own list for own purposes.

FEDERAL / RIGHTS IMPACT

- ARTICLE 366(26C) defines socially and educationally backward classes through Article 342A.
- CORE DISTINCTION
- Commission advice informs process; the constitutionally named authority changes legal status.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Commission advice informs process; the constitutionally named authority changes legal status.

08

STAGE 08

102ND, MARATHA JUDGMENT AND 105TH AMENDMENT

102ND, MARATHA JUDGMENT AND 105TH AMENDMENT

102ND AMENDMENT, 2018 CONSTITUTIONAL NCBC + ORIGINAL ARTICLE 342A

JAISHRI LAXMANRAO PATIL (2021) MAJORITY READ THE 102ND AMENDMENT

THE MARATHA QUOTA ALSO FAILED THE SEPARATE 50% CEILING

105TH AMENDMENT, 2021

CENTRAL LIST CONFINED TO CENTRAL PURPOSES

STATE/UT OWN LISTS EXPRESSLY RESTORED/CLARIFIED IN ARTICLE 342A(3)

ARTICLE 338B(9) CONSULTATION EXCEPTION FOR THAT LIST-MAKING PURPOSE.

CONSTITUTIONAL BASIS / ARTICLE

- 102ND AMENDMENT, 2018 constitutional NCBC + original Article 342A list wording.
- Jaishri Laxmanrao Patil (2021) majority read the 102nd Amendment as displacing independent State SEBC identification
- the Maratha quota also failed the separate 50% ceiling analysis.

POWER / PROCEDURE

- 105TH AMENDMENT, 2021
- Central List confined to Central purposes
- State/UT own lists expressly restored/clarified in Article 342A(3)

CHECK / LIMIT

- Article 338B(9) consultation exception for that list-making purpose.
- TRAP reservation ceiling, identification authority and Commission consultation are separate constitutional questions.
- LIMIT the 105th Amendment did not itself decide every quota, inclusion or creamy-layer dispute.

FEDERAL / RIGHTS IMPACT

- 105TH AMENDMENT, 2021

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP reservation ceiling, identification authority and Commission consultation are separate constitutional questions.

09

STAGE 09

DAVINDER SINGH (2024) AND EVIDENCE-BASED SC SUB-CLASSIFICATION

DAVINDER SINGH (2024) AND EVIDENCE-BASED SC SUB-CLASSIFICATION

DAVINDER SINGH (2024)

STATES MAY CREATE EVIDENCE-BASED SUB-CLASSIFICATION WITHIN SCHEDULED CASTES TO

CONDITIONS QUANTIFIABLE AND DEMONSTRABLE MATERIAL

RATIONAL CLASSIFICATION

NO DELETION FROM OR ALTERATION OF THE ARTICLE 341

JUDICIAL REVIEW REMAINS.

OVERRULED BOUNDARY

Davinder Singh (2024)

States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.

CONDITIONS quantifiable and demonstrable material → rational classification

no deletion from or alteration of the Article 341 Presidential List

CONSTITUTIONAL BASIS / ARTICLE

- Davinder Singh (2024)
- States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.
- CONDITIONS quantifiable and demonstrable material → rational classification

POWER / PROCEDURE

- no deletion from or alteration of the Article 341 Presidential List
- judicial review remains.
- OVERRULED BOUNDARY

CHECK / LIMIT

- E.V. Chinnaiah was overruled on the bar against SC sub-classification.
- CREAMY-LAYER CAUTION separate judicial opinions discussed exclusion ideas
- do not present them as one unanimous, enacted SC/ST creamy-layer rule.

FEDERAL / RIGHTS IMPACT

- COMMISSION ROLE evidence, consultation and monitoring may inform policy but do not replace valid law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: do not present them as one unanimous, enacted SC/ST creamy-layer rule.

CONSTITUTIONAL BASIS / ARTICLE

- Davinder Singh (2024)
- States may create evidence-based sub-classification within Scheduled Castes to distribute reservation benefits more equitably.
- CONDITIONS quantifiable and demonstrable material → rational classification

POWER / PROCEDURE

- no deletion from or alteration of the Article 341 Presidential List
- Judicial review remains.
- OVERRULED BOUNDARY

CHECK / LIMIT

- E.V. Chinniah was overruled on the bar against SC sub-classification.
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FEDERAL / RIGHTS IMPACT

- COMMISSION ROLE evidence, consultation and monitoring may inform policy but do not replace valid law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: do not present them as one unanimous, enacted SC/ST creamy-layer rule.

10

STAGE 10

OVERLAP, INDEPENDENCE, CAPACITY AND COORDINATED REFORM

OVERLAP, INDEPENDENCE, CAPACITY AND COORDINATED REFORMGAPS VACANCIESREGIONAL ACCESSCOMPLAINT DELAYWEAK DATA DELAYED REPORTS/RESPONSESOVERLAPPING FORUMSADVISORY LIMITSREFORM TRANSPARENT APPOINTMENTS + TIMELY STAFFING + COMMON INTAKE/REFERRAL

GAPS vacancies

→

regional access

→

complaint delay

→

weak data delayed reports/responses

→

overlapping forums

CONSTITUTIONAL BASIS / ARTICLE

- GAPS vacancies
- regional access
- complaint delay

POWER / PROCEDURE

- weak data delayed reports/responses
- overlapping forums
- advisory limits.

CHECK / LIMIT

- REFORM transparent appointments + timely staffing + common intake/referral
- joint inquiry protocols + public recommendation tracker
- research/data capacity + reasoned action memoranda.

FEDERAL / RIGHTS IMPACT

- DESIGN VERDICT coordinate specialised commissions; do not erase distinct SC, ST and SEBC safeguards.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DESIGN VERDICT coordinate specialised commissions; do not erase distinct SC, ST and SEBC safeguards.

11

STAGE 11

PYQ ROUTES, PRELIMS TRAPS AND MAINS SYNTHESIS

PYQ ROUTES, PRELIMS TRAPS AND MAINS SYNTHESISIMPLEMENTATION GAPS VACANCIES + DELAYED REPORTS + WEAK REGIONALREFORM TRANSPARENT APPOINTMENTS + TIME-BOUND STAFFINGCOMMON INTAKE/REFERRALJOINT INQUIRY PROTOCOLPUBLIC ACTION-TAKEN DASHBOARDRESEARCH CAPACITY

IMPLEMENTATION GAPS vacancies + delayed reports + weak regional access + fragmented complaint data poor

→

REFORM transparent appointments → time-bound staffing → common intake/referral

→

joint inquiry protocol → public action-taken dashboard

→

research capacity → reasoned government response.

→

PRELIMS FIREWALL

CONSTITUTIONAL BASIS / ARTICLE

- IMPLEMENTATION GAPS vacancies + delayed reports + weak regional access + fragmented complaint data poor recommendation tracking + overlapping forums.
- REFORM transparent appointments → time-bound staffing → common intake/referral
- joint inquiry protocol → public action-taken dashboard
- research capacity → reasoned government response.
- PRELIMS FIREWALL

POWER / PROCEDURE

- 338A NCST
- 338B NCBC
- Chair + Vice-Chair + three Members civil-court powers only for inquiry
- recommendations generally advisory
- 341 SC

CHECK / LIMIT

- 342A Central/State SEBC architecture.
- PYQ ROUTES
- 2018 NCSC/minority reservation + umbrella commission
- 2020 constitutionalisation
- 2022 NCBC

FEDERAL / RIGHTS IMPACT

- 2024 ST list.
- MAINS SPINE constitutional purpose → common powers → distinct domain → legal limit
- case/amendment → implementation gap → coordinated-specialisation verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MAINS SPINE constitutional purpose → common powers → distinct domain → legal limit.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTTHE BIG PICTUREPART A — NCSC (ART 338) & NCST (ARTPART B — NCBC (ART 338-B)PART C — LINGUISTIC MINORITIES (ART 350-B)COMPOSITION (EACH)CHAIRPERSON + VICE-CHAIRPERSON + 3 MEMBERS, APPOINTED BY

INVESTIGATE/MONITOR SC/ST SAFEGUARDS; INQUIRE INTO COMPLAINTS; ADVISE ON &

OPTIONAL DOCTRINE / CASE

- THE BIG PICTURE
- PART A — NCSC (Art 338) & NCST (Art 338-A)
- PART B — NCBC (Art 338-B)
- PART C — LINGUISTIC MINORITIES (Art 350-B)

ADVANCED LIMIT

- Composition (each): Chairperson + Vice-Chairperson + 3 members, appointed by the President by
- Functions: investigate/monitor SC/ST safeguards; inquire into complaints; advise on & evaluate
- Civil-court powers while investigating (summon persons, require documents, receive affidavit evidence,
- NCST extra duties (tribal-specific): safeguards under forest/mining law, minor forest produce, PESA/FRA

COMPARATIVE NUANCE

- Composition: Chairperson + Vice-Chairperson + 3 members (President-appointed).
- Centre & states must consult the NCBC on all major policy matters affecting SEBCs.
- CAUTION: 105th Amendment (2021): restored states'/UTs' power to make their own SEBC/OBC lists (after the SC's
- Special Officer for Linguistic Minorities, appointed by the President → investigates safeguards for

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

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NATIONAL COMMISSIONS SC ST BC • TILE 4/4 • same master rows 8440-11674 of 11674 • end